

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX.**

MUSII VASILE-MARIAN,

Plaintiff,

—against—

NEW YORK CITY 42ND PRECINCT POLICE:
OFFICER JOHNSON, JOHN DOES 1-5:
(fictitious unidentified police officers, true:
identities unknown), NEW YORK CITY:
POLICE DEPARTMENT (NYPD);
BOROUGH OF BRONX, CITY OF NEW:
YORK, STATE OF NEW YORK.

Defendants.

: Index No:
:
: Plaintiff designates
: Bronx County
: as the place of trial.

SUMMONS

Plaintiff, Musii Vasile-Marian resided in the
Borough of Bronx, County of Bronx, State of
New York, also the location of the subject
incident at the date and time regarding same.
Therefore the basis of venue is the residence
of Defendant.

TO THE ABOVE NAMED DEFENDANTS:

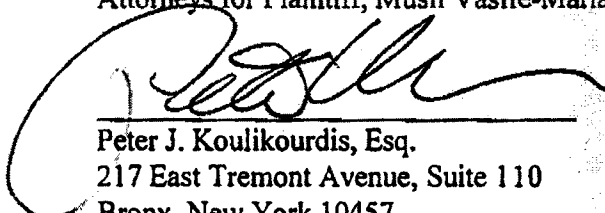
You are hereby summoned to answer the Complaint in this action and to serve a copy of your Answer, or, if the Complaint is not served with this Summons, to serve a notice of appearance, on the plaintiff's attorney within 20 days after the service of this Summons, exclusive of the day of service (or within 30 days after the service is complete if this Summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgement will be taken against you by default for the relief demanded in the Complaint.

Dated: August 16, 2019.

Yours, etc.

KOULIKOURDIS & ASSOCIATES

Attorneys for Plaintiff, Musii Vasile-Marian.


Peter J. Koulikourdis, Esq.

217 East Tremont Avenue, Suite 110

Bronx, New York 10457

Tel: (718) 299-7555

Defendants to be served:

Borough of Bronx
851 Grand Concourse, 3rd Floor
Bronx, N.Y. 10451

New York City Police Department
1 Police Plaza,
New York City, N.Y. 10038

**New York City Police Department
42nd Precinct Police Officer Johnson
830 Washington Avenue,
Bronx, N.Y. 10451**

**City of New York
1 Centre Street,
New York City, N.Y. 10007**

**State of New York
250 Broadway,
New York City, N.Y. 10007**

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX.**

MUSII VASILE-MARIAN,

Plaintiff,

-against-

NEW YORK CITY 42ND PRECINCT POLICE:
OFFICER JOHNSON, JOHN DOES 1-5:
(fictitious unidentified police officers, true:
identities unknown), NEW YORK CITY:
POLICE DEPARTMENT (NYPD),:
BOROUGH OF BRONX, CITY OF NEW:
YORK, STATE OF NEW YORK.

Defendants.

Index No:

Plaintiff designates
Bronx County
as the place of trial.

COMPLAINT

Plaintiff, MUSII VASILE-MARIAN, as and for his Verified Complaint, by his attorneys,
KOULIKOURDIS & ASSOCIATES, respectfully alleges as follows:

PARTIES

1. At the time of the subject incident, the Plaintiff, MUSII VASILE-MARIAN was a resident at or about the location of 1425 Vyse Avenue in the Bronx, New York legally permitted to reside on the premises.
2. At all times hereinafter mentioned, the Defendant, NEW YORK CITY 42ND PRECINCT POLICE OFFICER JOHNSON, (Hereinafter referred to as POLICE OFFICER JOHNSON), is a New York City police officer legally employed with the 42nd Precinct of the Co-Defendant, NEW YORK CITY POLICE DEPT, primarily responsible for maintaining law and order in the Borough of Bronx.
3. At all times hereinafter mentioned, the Defendant(s) JOHN DOES 1-5 (fictitious unidentified police officers, true identities unknown) are certain presently unknown individuals

who are believed to be employed by co-defendant, NEW YORK CITY POLICE DEPARTMENT, in charge of maintaining law and order in the Borough of Bronx.

4. At all times hereinafter mentioned, the Defendant, NEW YORK CITY POLICE DEPARTMENT (NYPD) is the major law enforcement organization charged with supervising and/or enforcing the laws of the State of New York and City of New York including but not limited to the Borough of Bronx, and the employers of Defendant(s), JOHN DOES 1-5 (fictitious unidentified police officers, true identities unknown), and POLICE OFFICER JOHNSON of the 42nd precinct.

5. At all times hereinafter mentioned, the Defendant, BOROUGH OF BRONX, is one of the five New York City boroughs, also the location that the Plaintiff resided in on the date of the incident the subject of this Complaint.

6. At all times hereinafter mentioned, the Defendant, CITY OF NEW YORK includes but is not limited to the jurisdiction of the BOROUGH OF BRONX, also the controlling city/jurisdiction of CO-Defendant, NEW YORK CITY POLICE DEPARTMENT (NYPD).

7. At all times hereinafter mentioned, the Defendant, STATE OF NEW YORK includes but is not limited to the jurisdiction of Co-Defendant(s) BOROUGH OF BRONX and CITY OF NEW YORK, the controlling jurisdictions as served by Co-Defendant, NEW YORK CITY POLICE DEPARTMENT (NYPD).

FACTS APPLICABLE TO ALL COUNTS

8. The Plaintiff repeats, reiterates, and realleges each allegation contained in the "Parties", and incorporates same herein by reference.

9. On or about July 29, 2018, at about 6:00 p.m., the Plaintiff, MUSII VASILE MARIAN was a resident of the State of New York, County of Bronx, specifically

residing in the location of 1425 Vyse Avenue, Borough of Bronx, County of Bronx, State of New York.

10. At the above-referenced date and time, Plaintiff and his friends were present in the backyard of the 1425 Vyse Avenue residence (hereinafter referred to as the Subject Residence), conducting a barbeque.

11. A neighbor of the Plaintiff residing in his apartment facility proceeded to pass by the barbeque area several times. Then, the Plaintiff's brother allegedly told the neighbor to walk around the barbeque area.

12. Thereafter, a neighbor claimed that she was pushed by the Plaintiff's brother. The New York Police Dept was then called due to these allegations of assault and/or misconduct by the neighbor.

13. After a few minutes, Police Officers from the 42nd Precinct, including Defendant, POLICE OFFICER JOHNSON and Co-Defendant(s) JOHN DOES 1-5 (fictitious police officers, true identities unknown), arrived at or about the scene of the Plaintiff's residence to investigate any and all reports of assault.

14. Since the Plaintiff's brother the subject of the neighbor's original complaint does not speak English, the Plaintiff, who understands the language better, chose to assist the police officers on scene during their initial and brief questioning of his brother about what transpired with him and the neighbor as noted above.

15. During police officer questioning, the responding officer(s) including but not limited to Defendant, POLICE OFFICER JOHNSON of the 42nd Precinct and JOHN DOES 1-5, asked why the Plaintiff was speaking on behalf of his brother. Then, the Plaintiff was required to identify himself by the officers.

16. In response, the Plaintiff asked the officers why he was the only individual at the scene of the barbeque and his home in addition to his brother being questioned about the alleged incident.

17. The Plaintiff then told the police that he did not want to disclose his identity or give his drivers license to officers. Then, he walked inside his home, also located at or about 1425 Vyse Avenue, in Bronx, New York.

18. Police Officer Johnson then followed the Plaintiff to his house, knocking on the door. Plaintiff then answered the door, at which point, the officer slammed the door open, acting aggressively toward Plaintiff.

19. Suddenly, unexpectedly, and without warning, Defendant, POLICE OFFICER JOHNSON, threw the Plaintiff to the ground, along with a second Police Officer coming thereafter, and concluding with both officers forcing the victim, Plaintiff MUSII VASILE-MARIAN, to the ground, resulting in him sustaining serious, severe personal injuries, including but not limited to lacerations on the face, a bruised left eye, cuts, scratches, and injuries to his back and shoulder.

20. Thereafter, Plaintiff and his brother were taken to the police station for questioning. The Plaintiff and his brother were subsequently released, due to the lack of probable cause for charging either of them under the criminal laws of the State of New York.

**AS AND FOR A FIRST CAUSE OF ACTION-CIVIL ASSAULT AND
BATTERY-MARIAN V. POLICE OFFICER JOHNSON.**

21. Plaintiff repeats, reiterates, and realleges each allegation contained in the "Parties", and "Facts Applicable to All Counts", and incorporates same herein by reference.

22. On or about July 29, 2018, the Plaintiff, MUSII VASILE MARIAN was present

outside his Bronx, New York apartment, located at the address of 1425 Vyse Avenue in Bronx, New York for the specific purpose of attending an outdoor barbeque.

23. The Defendant, NEW YORK CITY POLICE DEPARTMENT, was then called by a neighbor, alleging assault, committed by the Plaintiff's brother and other officers, including but not limited to POLICE OFFICER JOHNSON and JOHN DOES 1-5, who responded to the scene, and attempted to question the Plaintiff's brother about an assault allegation by the neighbor.

24. Subsequently, the Plaintiff refused to give his identification to responding officers, including but not limited to Police Officer JOHNSON, resulting in the Plaintiff walking to his apartment and locking the door.

25. After officers followed him to his apartment, there was a knock on the door. As the Plaintiff answered the door, suddenly, unexpectedly, and without warning, the Defendant, POLICE OFFICER JOHNSON of Precinct 42, threw the Plaintiff to the ground. Thereafter, a second unidentified Police Officer, JOHN DOE 1-5, appeared to render assistance, and the incident concluded with both officers forcing the victim, Plaintiff MUSII VASILE-MARIAN to the ground, resulting in him sustaining serious, severe personal injuries, including but not limited to lacerations on the face, a bruised left eye, cuts, scratches, and injuries to his back and shoulder.

26. Defendant, POLICE OFFICER JOHNSON of the 42nd Precinct of the State of New York placed the Plaintiff in imminent fear of grievous and/or significant bodily harm, which culminated in actual, intentional physical bodily harm, specifically by excessively throwing the Plaintiff to the ground without probable cause or reasonable grounds to fear for Police Officer Johnson's life or well being, resulting in serious and/or significant bodily injuries.

27. By reason of the intentional conduct of Defendant, POLICE OFFICER JOHNSON of the 42nd PRECINCT, and imprudence of the Defendant, the Plaintiff, MUSII

VASILE-MARIAN sustained a serious and significant injury, specifically to lacerations on the face, a bruised left eye, cuts, scratches, and injuries to his back and shoulder. Therefore, the Plaintiff has become damaged, sick, sore, lame and disabled, that she was compelled to and will in the future be compelled to receive hospital, medical and/or other care and attention in an attempt to cure himself, that he has been incapacitated and prevented from attending to his usual occupation and activities; that he has been required to and will in the future be required to expend sums of money for said care and other attention; that he has otherwise been injured permanently, internally, externally, mentally and physically.

28. The said accident and the injuries and damages sustained by the Plaintiff, MUSII VASILE-MARIAN were caused by reason of the intentional assault and/or battery of the Defendant, POLICE OFFICER JOHNSON of the 42ND PRECINCT, was in no way due to any actions on the part of the Plaintiff.

29. By reason of the foregoing, the Plaintiff, MUSII VASILE-MARIAN has been injured and damaged in the sum of at least \$1,000,000.00.

**AS AND FOR A SECOND CAUSE OF ACTION--CIVIL ASSAULT--
MARIAN V. JOHN DOES 1-5 (fictitious police officers, true identities
unknown).**

30. Plaintiff repeats, reiterates, and realleges each allegation contained in the "Parties", "Facts Applicable to All Counts", and "First Cause of Action", and incorporates same herein by way of reference.

31. On or about July 29, 2018, the Plaintiff, MUSII VASILE MARIAN was present outside his Bronx, New York apartment, located at the address of 1425 Vyse Avenue in Bronx, N.Y. 10459, specifically for the purpose of attending an outdoor barbeque.

32. The New York City Police Department was then called by a neighbor alleging

assault committed by the Plaintiff's brother and officers, including Defendant(s) JOHN DOES 1-5 (fictitious police officers, true identities unknown), who responded to the scene, and attempted to question the Plaintiff's brother about an assault allegation by the neighbor.

33. Subsequently, Plaintiff refused to give his identification to responding officers, including but not limited to Police Officer(s) JOHN DOES 1-5 (fictitious police officers, true identities unknown), thereafter walking to his apartment and locking the door.

34. After the Plaintiff entered his apartment, a knock appeared at the door. As the Plaintiff answered the door, suddenly, unexpectedly, and without warning, JOHN DOES 1-5 (fictitious police officers, true identities unknown) threw the Plaintiff to the ground, resulting in the Plaintiff sustaining serious, severe personal injuries, including but not limited to lacerations on the face, a bruised left eye, cuts, scratches, and injuries to his back and shoulder.

35. Defendant, JOHN DOES 1-5 (fictitious police officers, true identities unknown) of the 42nd Precinct of the State of New York placed the Plaintiff in imminent fear of grievous and/or significant bodily harm, which culminated in actual, intentional physical bodily harm, specifically by excessively throwing the Plaintiff to the ground without probable cause or reasonable grounds to fear for Police Officer Johnson's life or well being, resulting in serious and/or significant bodily injuries.

36. By reason of the intentional conduct of Defendant(s) JOHN DOES 1-5 (fictitious police officers, true identities unknown), and imprudence of the Defendant, the Plaintiff, MUSII VASILE-MARIAN sustained a serious and significant injury, specifically to lacerations on the face, a bruised left eye, cuts, scratches, and injuries to his back and shoulder. Therefore, the Plaintiff has become damaged, sick, sore, lame and disabled, that she was compelled to and will

in the future be compelled to receive hospital, medical and/or other care and attention in an attempt to cure himself, that he has been incapacitated and prevented from attending to his usual occupation and activities; that he has been required to and will in the future be required to expend sums of money for said care and other attention; that he has otherwise been injured permanently, internally, externally, mentally and physically.

37. The said accident and the injuries and damages sustained by the Plaintiff, MUSII VASILE-MARIAN were caused by reason of the intentional assault and/or battery of Defendant(s), JOHN DOES 1-5 (fictitious police officers, true identities unknown), and was in no way due to any actions on the part of the Plaintiff.

38. By reason of the foregoing, the Plaintiff, MUSII VASILE-MARIAN has been injured and damaged in the sum of at least \$1,000,000.00.

**AS AND FOR A THIRD CAUSE OF ACTION—NEGLIGENCE---MARIAN
V. POLICE OFFICER JOHNSON.**

39. Plaintiff repeats, reiterates, and realleges each allegation contained in the “Parties”, “Facts Applicable to All Counts”, “First Cause of Action”, and “Second Cause of Action” and incorporates same herein byway of reference.

40. On or about July 29, 2018, the Plaintiff, MUSII VASILE MARIAN was present outside his Bronx, New York apartment, located at the address of 1425 Vyse Avenue in Bronx, N.Y. 10459, specifically for the purpose of attending an outdoor barbeque.

41. After the Defendant, NEW YORK CITY POLICE DEPARTMENT (NYPD) was called by a neighbor, officers, including Defendant, POLICE OFFICER JOHNSON, of Precinct 42, attempted to question the Plaintiff’s brother about an assault allegation by the reporting neighbor.

42. Subsequently, Plaintiff refused to give his identification to responding officers, including but not limited to Police Officer JOHNSON, thereafter walking to his apartment and locking the door.

43. At all times hereinafter mentioned, the Defendant, POLICE OFFICER JOHNSON, was under a duty as a member of the Defendant, NEW YORK POLICE DEPARTMENT, to refrain from engaging in excessive force likely to cause imminent or immediate bodily harm to an individual suspected of a criminal offense or a suspect that he was attempting to ascertain information from, or to refrain from arresting an individual and/or injuring a potential suspect without probable cause for same.

44. After the Plaintiff entered his apartment, a knock appeared at the door. As the Plaintiff answered the door, suddenly, unexpectedly, and without warning, Defendant, POLICE OFFICER JOHNSON violated his duties as a New York City police officer by throwing the Plaintiff to the ground and/or holding him with such great force and/or impact, resulting in the Plaintiff sustaining serious, severe personal injuries, without any initial aggression by the Plaintiff or threat to the life and/or well being of the Plaintiff, MUSII VASILE MARIAN, or probable cause to arrest the Plaintiff.

45. By reason of the negligence, carelessness, and imprudence of the Defendant, as a direct and proximate result of the physical actions of the Defendant, POLICE OFFICER JOHNSON, including engaging an individual with excessive force likely to cause imminent or immediate bodily harm to an individual suspected of a criminal offense or a suspect that he was attempting to ascertain information from due to an investigation, the Plaintiff, MUSII VASILE MARIAN was injured, bruised, and wounded and upon information and belief, sustained injuries to his neck, shoulder, lower back, middle back, and upper back, in addition to suffering from

headaches. Therefore, he became sick, sore, lame, and/or disabled, suffering injuries to his face, a bruised left eye, cuts, scratches, and injuries to his back and shoulder. Therefore, the Plaintiff was compelled and will be compelled in the future to receive hospital, medical and/or other care and attention in an attempt to cure himself, that he has been incapacitated and prevented from attending to his usual occupation and activities; that he has been required to and will in the future be required to expend sums of money for said care and other attention; that he has otherwise been injured permanently, internally, externally, mentally and physically.

46. The said accident and the injuries and damages sustained by the Plaintiff, MUSII VASILE-MARIAN were caused by reason of the negligence of the Defendant(s), POLICE OFFICER JOHNSON, and was in no way due to any negligence on the part of the Plaintiff.

47. By reason of the foregoing, the Plaintiff, MUSII VASILE-MARIAN has been injured and damaged in the sum of at least \$1,000,000.00.

AS AND FOR A FOURTH CAUSE OF ACTION---NEGLIGENCE---
MARIAN V. JOHN DOES 1-5 (fictitious unidentified police officers, true
identities unknown).

48. The Plaintiff repeats, re-iterates, and re-alleges each and every allegations as contained in the "Parties", "Facts Applicable to All Counts", "Count One", "Count Two", and "Count Three" and incorporates same herein by way of reference.

49. On or about July 29, 2018, the Plaintiff, MUSII VASILE MARIAN was present outside his Bronx, New York apartment, located at the address of 1425 Vyse Avenue in Bronx, N.Y. 10459, specifically for the purpose of attending an outdoor barbeque.

50. After the Defendant, NEW YORK CITY POLICE DEPARTMENT (NYPD) was called by a neighbor, officers, including Defendants, JOHN DOES 1-5 (fictitious unidentified

police officers, true identities unknown), of Precinct 42, attempted to question the Plaintiff's brother about an assault allegation by the reporting neighbor.

51. Subsequently, Plaintiff refused to give his identification to responding officers, including but not limited to Defendants, JOHN DOES 1-5 (fictitious unidentified police officers, true identities unknown), thereafter walking to his apartment and locking the door.

52. At all times hereinafter mentioned, the Defendants, JOHN DOES 1-5 (fictitious unidentified police officers, true identities unknown), were under a duty as a member of the Defendant, NEW YORK POLICE DEPARTMENT, to refrain from engaging in excessive force likely to cause imminent or immediate bodily harm to an individual suspected of a criminal offense or a suspect that he was attempting to ascertain information from, or to refrain from arresting an individual and/or injuring a potential suspect without probable cause for same.

53. After the Plaintiff entered his apartment, a knock appeared at the door. As the Plaintiff answered the door, suddenly, unexpectedly, and without warning, Defendants, JOHN DOES 1-5 (fictitious police officers, true identities unknown), violated their duties by throwing the Plaintiff to the ground and/or holding him with such great force and/or impact, resulting in the Plaintiff sustaining serious, severe personal injuries, without any initial aggression by the Plaintiff or threat to the life and/or well being of the Plaintiff, MUSII VASILE MARIAN, or probable cause to arrest the Plaintiff.

54. By reason of the negligence, carelessness, and imprudence of the Defendant, including engaging in excessive force likely to cause imminent or immediate bodily harm to an individual suspected of a criminal offense or in attempting to ascertain information, as a direct and proximate result of the physical actions of the Defendant(s), JOHN DOES 1-5 (fictitious police officers, true identities unknown), the Plaintiff, MUSII VASILE MARIAN was

injured, bruised, and wounded and upon information and belief, sustained injuries to his neck, shoulder, lower back, middle back, and upper back, in addition to suffering from headaches. Therefore, he became sick, sore, lame, and/or disabled, suffering injuries to his face, a bruised left eye, cuts, scratches, and injuries to his back and shoulder. Therefore, the Plaintiff was compelled and will be compelled in the future to receive hospital, medical and/or other care and attention in an attempt to cure himself, that he has been incapacitated and prevented from attending to his usual occupation and activities; that he has been required to and will in the future be required to expend sums of money for said care and other attention; that he has otherwise been injured permanently, internally, externally, mentally and physically.

55. The said accident and the injuries and damages sustained by the Plaintiff, MUSII VASILE-MARIAN were caused by reason of the negligence of the Defendant(s), JOHN DOES 1-5 (fictitious police officers, true identities unknown), and was in no way due to any negligence on the part of the Plaintiff.

56. By reason of the foregoing, the Plaintiff, MUSII VASILE-MARIAN has been injured and damaged in the sum of at least \$1,000,000.00.

AS AND FOR A FIFTH CAUSE OF ACTION—NEGLIGENT HIRING--
MARIAN V. NEW YORK CITY POLICE DEPARTMENT (NYPD).

57. The Plaintiff repeats, re-iterates, and re-alleges each and every allegations as contained in the "Parties", "Facts Applicable to All Counts", "Count One", "Count Two", "Count Three", and "Count Four", and incorporates same herein by way of reference.

58. On or about July 29, 2018, the Plaintiff, MUSII VASILE MARIAN was present outside his Bronx, New York apartment, located at the address of 1425 Vyse Avenue in Bronx, N.Y. 10459, specifically for the purpose of attending an outdoor barbeque.

59. Several minutes passed by, and the Defendant, NEW YORK CITY POLICE DEPARTMENT (NYPD) was contacted by a neighbor who alleged that the Plaintiff's brother pushed her.

60. Responding officers, including Co-Defendant(s), JOHN DOES 1-5 (fictitious police officers, true identities unknown), and POLICE OFFICER JOHNSON, all of the 42nd Precinct, responded to the subject scene. Due to the fact that Plaintiff's brother could not understand English, the Plaintiff, who understands more of the language, attempted to act as a translator. At that time, officers asked for the Plaintiff's identification which he refused to give, waling to his apartment and locking the door.

61. Shortly after the Plaintiff entered his apartment, a knock appeared at the door. As the Plaintiff answered the door, suddenly, unexpectedly, and without warning, Co-Defendant(s), JOHN DOES 1-5 (fictitious police officers, true identities unknown), and POLICE OFFICER JOHNSON, proceeded to throw the Plaintiff to the ground and/or hold him with such great force and/or impact, resulting in the Plaintiff sustaining serious, severe personal injuries, including but not limited to lacerations on the face, a bruised left eye, cuts, scratches, and injuries to his back and shoulder.

62. Defendant, NEW YORK CITY POLICE DEPARTMENT (NYPD) employed Co-Defendants, POLICE OFFICER JOHNSON, and JOHN DOES 1-5 (fictitious police officers, true identities unknown) at the time of the incident the subject of this Complaint.

63. At all times hereinafter mentioned, the Defendant, NEW YORK CITY POLICE DEPARTMENT (NYPD) was under a duty to implement the proper policies and procedures for hiring potential police officer candidates including but not limited to all of New York City and the 42nd Precinct, and thereafter following up with progress and training benchmarks required of

officially certified police officers, thereafter taking proper disciplinary action or failing to approve officers that did not meet the required criteria, including but not limited to CO-Defendants, POLICE OFFICER JOHNSON and JOHN DOES 1-5 (fictitious unidentified police officers, true identities unknown).

64. By reason of the negligence, carelessness, and imprudence of the Defendant, NEW YORK CITY POLICE DEPARTMENT, as a direct and proximate result of the failure to adequately implement the proper policies and procedures for hiring potential police officer candidates including but not limited to all New York City and the 42nd Precinct, following up with benchmarks required of officially certified police officers, taking disciplinary action for misconduct, and monitor police officers thereafter, including but not limited to Co-Defendant(s), POLICE OFFICER JOHNSON and JOHN DOES 1-5, the Plaintiff, MUSII VASILE MARIAN was injured, bruised, and wounded and upon information and belief, sustaining serious and significant injuries to his neck, shoulder, lower back, middle back, and upper back, in addition to suffering from headaches. Therefore, he became sick, sore, lame, and/or disabled, suffering injuries to his face, a bruised left eye, cuts, scratches, and injuries to his back and shoulder. Therefore, the Plaintiff was compelled and will be compelled in the future to receive hospital, medical and/or other care and attention in an attempt to cure himself, that he has been incapacitated and prevented from attending to his usual occupation and activities; that he has been required to and will in the future be required to expend sums of money for said care and other attention; that he has otherwise been injured permanently, internally, externally, mentally and physically.

65. The said accident and the injuries and damages sustained by the Plaintiff, MUSII VASILE-MARIAN were caused by reason of the negligence of the Defendant(s), NEW

YORK CITY POLICE DEPARTMENT, and was in no way due to any negligence on the part of the Plaintiff.

66. By reason of the foregoing, the Plaintiff, MUSII VASILE-MARIAN has been injured and damaged in the sum of at least \$1,000,000.00.

**AS AND FOR A SIXTH CAUSE OF ACTION—NEGLIGENCE---MARIAN
V. BOROUGH OF BRONX.**

67. The Plaintiff repeats, re-iterates, and re-alleges each and every allegation as contained in the "Parties", "Facts Applicable to All Counts", "Count One", "Count Two", "Count Three", and "Count Four", and "Count Five", and incorporates same herein by way of reference.

68. On or about July 29, 2018, the Plaintiff, MUSII VASILE MARIAN was present outside his Bronx, New York apartment, located at the address of 1425 Vyse Avenue in Bronx, N.Y. 10459, specifically for the purpose of attending an outdoor barbeque.

69. Several minutes passed by, and the Co-Defendant, NEW YORK CITY POLICE DEPARTMENT (NYPD) was contacted by a neighbor who alleged that the Plaintiff's brother pushed her.

70. Responding officers, including Co-Defendant(s), JOHN DOES 1-5 (fictitious police officers, true identities unknown), and POLICE OFFICER JOHNSON, all of the 42nd Precinct, responded to the subject scene. Due to the fact that Plaintiff's brother could not understand English, the Plaintiff, who understands more of the language, attempted to act as a translator. At that time, officers asked for the Plaintiff's identification which he refused to give, waling to his apartment and locking the door.

71. At the aforementioned date and time, the Defendant, BOROUGH OF BRONX,

one of the five New York City Boroughs, was the jurisdiction as governed and controlled by the 42nd Precinct Division of the Defendant, NEW YORK CITY POLICE DEPARTMENT, under a duty to inspect, monitor, and follow up with any and all police division operations, including adequately responding to complaints of disciplinary or aggressive conduct filed against any and all officers or potential officers in that division, including but not limited to Co-Defendants POLICE OFFICER JOHNSON and JOHN DOES 1-5 (fictitious unidentified police officers, true identities unknown).

72. Shortly after the Plaintiff entered his apartment, a knock appeared at the door. As the Plaintiff answered the door, suddenly, unexpectedly, and without warning, Co-Defendant(s), JOHN DOES 1-5 (fictitious police officers, true identities unknown), and POLICE OFFICER JOHNSON, both employed with Co-Defendant, NEW YORK CITY POLICE DEPARTMENT (NYPD), proceeded to throw the Plaintiff to the ground and/or hold him with such great force and/or impact, resulting in the Plaintiff sustaining serious, severe personal injuries, including but not limited to lacerations on the face, a bruised left eye, cuts, scratches, and injuries to his back and shoulder.

73. As a direct and proximate result of the negligence, carelessness, and/or imprudence of the Defendant, BOROUGH OF BRONX, which consisted of failing to accurately and properly inspect and monitor all police department operations of the Co-Defendant(s), NEW YORK CITY POLICE DEPARTMENT, (NYPD), and CO-Defendant officers, including POLICE OFFICER JOHNSON and JOHN DOES 1-5, the Plaintiff sustained serious and/or significant injuries.

74. By reason of the negligence, carelessness, and imprudence of the Defendant, BOROUGH OF BRONX, the Plaintiff, MUSII VASILE MARIAN was injured, bruised, and

wounded and upon information and belief, sustained injuries to his neck, shoulder, lower back, middle back, and upper back, in addition to suffering from headaches. Therefore, he became sick, sore, lame, and/or disabled, suffering injuries to his face, a bruised left eye, cuts, scratches, and injuries to his back and shoulder. Therefore, the Plaintiff was compelled and will be compelled in the future to receive hospital, medical and/or other care and attention in an attempt to cure himself, that he has been incapacitated and prevented from attending to his usual occupation and activities; that he has been required to and will in the future be required to expend sums of money for said care and other attention; that he has otherwise been injured permanently, internally, externally, mentally and physically.

75. The said accident and the injuries and damages sustained by the Plaintiff, MUSII VASILE-MARIAN were caused by reason of the negligence of the Defendant(s), BOROUGH OF BRONX, and were in no way due to any negligence on the part of the Plaintiff.

76. By reason of the foregoing, the Plaintiff, MUSII VASILE-MARIAN has been injured and damaged in the sum of at least \$1,000,000.00.

WHEREFORE, Plaintiff demands judgment as follows:

1. On the First Cause of Action, a judgment against Defendants and an award of compensatory damages, including those for pain & suffering, medical bills/expenses, lawful interest, costs of suit, punitive damages, lost wages due to the accident, all in the amount of at least \$1,000,000.00 (ONE MILLION DOLLARS), and further relief that this Court deems just, equitable, and proper.
2. On the Second Cause of Action, a judgment against Defendants and an award of compensatory damages, including those for pain & suffering, medical bills/expenses, lawful interest, costs of suit, punitive damages, lost wages due to the accident, all in the amount of at

least \$1,000,000.00 (ONE MILLION DOLLARS), and further relief that this Court deems just, equitable, and proper.

3. On the Third Cause of Action, a judgment against Defendants and an award of compensatory damages, including those for pain & suffering, medical bills/expenses, lawful interest, costs of suit, and lost wages due to the accident, all in the amount of at least \$1,000,000.00 (ONE MILLION DOLLARS), and further relief that this Court deems just, equitable, and proper.

4. On the Fourth Cause of Action, a judgment against Defendants and an award of compensatory damages, including those for pain & suffering, medical bills/expenses, lawful interest, costs of suit, and lost wages due to the accident, all in the amount of at least \$1,000,000.00 (ONE MILLION DOLLARS), and further relief as that this Court deems just, equitable and proper.

5. On the Fifth Cause of Action, a judgment against Defendants and an award of compensatory damages, including those for pain & suffering, medical bills/expenses, lawful interest, costs of suit, and lost wages due to the accident, all in the amount of at least \$1,000,000.00 (ONE MILLION DOLLARS), and further relief as that this Court deems just, equitable and proper.

6. On the Sixth Cause of Action, a judgment against Defendants and an award of compensatory damages, including those for pain & suffering, medical bills/expenses, lawful interest, costs of suit, and lost wages due to the accident, all in the amount of at least \$1,000,000.00 (ONE MILLION DOLLARS), and further relief as that this Court deems just, equitable and proper.

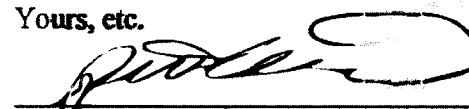
YSCEF DOC. NO. 1

RECEIVED NYSCEF: 08/28/2019

Dated: Bronx, New York

January __, 2019.

Yours, etc.



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